

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NANCY PRIOR, *Complainant*

v.

AMOOV GROUP; FREIGHTLEAD LLC; AND AIR 7 SEAS
TRANSPORT LOGISTICS, INC., *Respondents*.

DOCKET NO. 26-02

Served: June 30, 2026

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

ORDER DENYING RESPONDENT'S MOTION FOR LEAVE TO FILE OUT OF TIME

On June 18, 2026, Respondent Air 7 Seas Transport Logistics, Inc. filed a motion seeking leave to file its opposition to Complainant's Motion to Compel [Dkt. 26] out of time. Dkt. 29. A response to a motion to compel must be served and filed within 7 days after the date of service of the motion. 46 C.F.R. § 502.150(a)(3). Air 7 Seas Transport's opposition to Complainant's June 2, 2026 motion was due on June 9, 2026. A motion for enlargement of time submitted after the scheduled filing date, as is the case here, is treated as a request to accept a late filing and must be accompanied by the document. 46 C.F.R. § 502.102(b). Air 7 Seas Transport's motion was not accompanied by the overdue opposition to the motion to compel, instead seeking leave to file on or before June 26, 2026. Mot. for Leave 1.

In addition to this procedural defect, Air 7 Seas Transport's motion does not demonstrate the "exceptional circumstances" required for consideration of a late filing. 46 C.F.R. § 502.102(b). As grounds for the motion, counsel cited his client's illness, a family member's illness, and the "significant work" involved in responding to discovery. Mot. for Leave 1. There is no question that discovery is time- and resource-intensive, but this is not sufficient grounds for failing to respond to a motion, or to timely request an extension. And while I am sympathetic to illnesses, the motion's generalized references to illness do not adequately demonstrate exceptional circumstances.

Accordingly, Respondent Air 7 Seas Transport's motion for leave to file out of time is **DENIED**.

**ALEX
CHINTELLA**

Alex M. Chintella
Administrative Law Judge

Digitally signed by ALEX
CHINTELLA
Date: 2026.06.30 18:24:10
-04'00'